

STATE OF NEW YORK

4774--A

Cal. No. 917

2025-2026 Regular Sessions

IN SENATE

February 12, 2025

Introduced by Sens. C. RYAN, ADDABBO, BORRELLO, BYNOE, CANZONERI-FITZPATRICK, CHAN, COMRIE, FAHY, GALLIVAN, GOUNARDES, HELMING, HOYLMAN-SIGAL, JACKSON, LANZA, MARTINEZ, MARTINS, MATTERA, MAYER, MURRAY, OBERACKER, PALUMBO, RAMOS, RHOADS, ROLISON, SCARCELLA-SPANTON, SKOUFIS, TEDISCO, WEIK -- read twice and ordered printed, and when printed to be committed to the Committee on Codes -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the penal law, in relation to establishing the offense of vehicular homicide

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

- 1 Section 1. The penal law is amended by adding a new section 125.13-a
2 to read as follows:
3 § 125.13-a Vehicular homicide.
4 A person is guilty of vehicular homicide when such person, while oper-
5 ating a motor vehicle under circumstances evincing a depraved indiffer-
6 ence to human life, intentionally engages in conduct that causes the
7 death of another person.
8 Vehicular homicide is a class B felony.
9 § 2. This act shall take effect on the one hundred eightieth day after
10 it shall have become a law.

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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